

MUTUAL NON-DISCLOSURE AGREEMENT

Effective Date: _____, 2026

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of the Effective Date above, between **Mexausa Food Group, Inc.**, a California corporation with its principal place of business in Salinas, California ("Mexausa" or "Platform Operator"), and the undersigned party ("Counterparty"), collectively referred to as the "Parties."

1. PURPOSE

The Parties desire to explore a potential business relationship involving agricultural produce transactions, trade financing, inventory matching, or related services facilitated through the LOAF Platform and AuditDNA intelligence system operated by Mexausa Food Group, Inc. ("Purpose"). In connection with the Purpose, each Party may disclose Confidential Information to the other.

2. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any non-public information disclosed by one Party to the other, directly or indirectly, in writing, orally, or by inspection of tangible objects, including but not limited to: pricing, volume commitments, buyer and grower contact data, supply chain logistics, financial terms, factoring agreements, trade routes, commodity sourcing strategies, platform data, algorithms, AI outputs, and any information marked as "confidential" or that a reasonable person would consider confidential given the nature of the information.

3. OBLIGATIONS

- (a) Each Party agrees to hold the other Party's Confidential Information in strict confidence and to protect it using the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care.
- (b) Each Party agrees not to disclose the other Party's Confidential Information to any third party without prior written consent, except to employees, agents, or advisors who have a need to know and are bound by confidentiality obligations no less restrictive than those in this Agreement.
- (c) Each Party agrees to use the other Party's Confidential Information solely for the Purpose and not for any competitive or commercial purpose outside of the contemplated transaction.

4. EXCLUSIONS

Confidential Information does not include information that: (i) is or becomes publicly known through no breach of this Agreement; (ii) was rightfully known before disclosure; (iii) is rightfully received from a third party without restriction; or (iv) is required to be disclosed by law or court order, provided the receiving Party gives prompt written notice to the disclosing Party.

5. PLATFORM DATA & LOAF INTELLIGENCE

Any data submitted to the LOAF Platform or AuditDNA system — including inventory uploads, tender postings, pricing, commodity grades, GPS locations, and transaction histories — remains the property of the submitting party. Mexausa may use aggregated, anonymized data for platform intelligence, market reporting, and institutional data licensing purposes. Individual party data is never sold or disclosed without written authorization.

6. TERM

This Agreement shall remain in effect for three (3) years from the Effective Date, or until the Parties execute a definitive agreement superseding this Agreement, whichever occurs first. Obligations regarding trade secrets shall survive indefinitely.

7. REMEDIES

Each Party acknowledges that breach of this Agreement may cause irreparable harm for which monetary damages would be inadequate. Each Party therefore agrees that the other Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law.

8. GOVERNING LAW

This Agreement shall be governed by the laws of the State of California, without regard to conflict of law principles. Any disputes shall be resolved in the courts of Monterey County, California.

9. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, or agreements relating to the same subject matter.

SIGNATURES

PARTY A

Grower / Buyer / Partner (Full Legal Name)

Signature: _____

Print Name: _____

Title: _____

Date: _____

Email: _____

MEXAUSA FOOD GROUP, INC.

Saul Garcia, CEO & Founder

Signature: _____

Print Name: Saul Garcia

Title: CEO & Founder

Date: _____

Email: Saul@mexausafg.com